San Francisco Bay Conservation and Development Commission

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May 12, 2025

TO: Design Review Board Members

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SUBJECT: **Berkeley Waterfront and Berkeley Pier Ferry Project; Pre-Application Briefing**
(For Design Review Board consideration on May 12, 2025)

Project Summary

Project Proponent

City of Berkeley and SF Bay Water Emergency Transportation Authority (WETA)

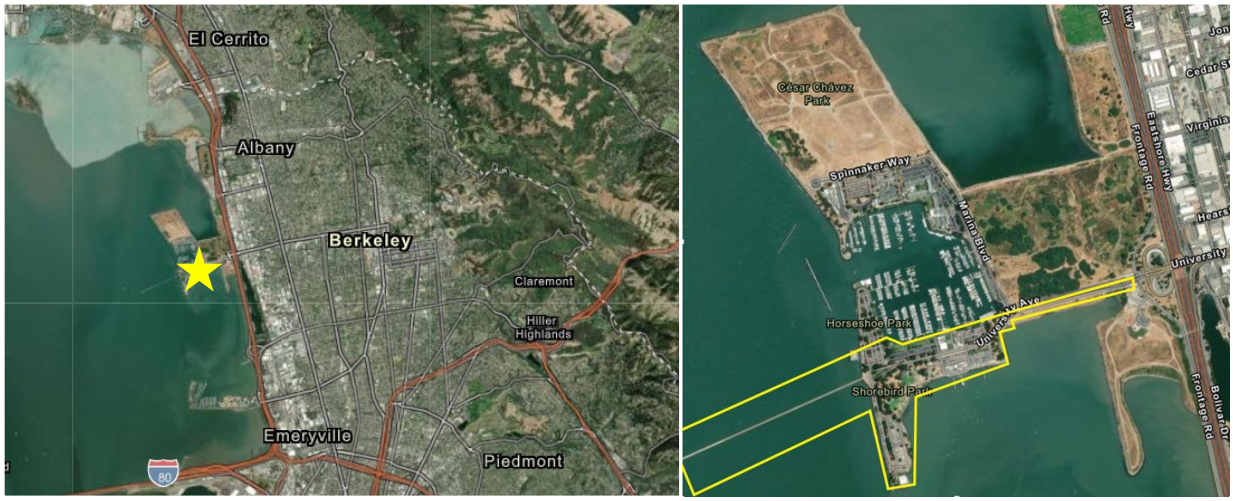
Project Representatives

Liza McNulty, City of Berkeley Capital Improvement Programs Manager

Project Location

The project site is located at the Berkeley Waterfront along the San Francisco Bay in the City of Berkeley, Alameda County. As shown in Figure 1, the project site encompasses the closed Berkeley Pier, including the entry plaza for the Berkeley Pier; the San Francisco Bay waters around the closed Berkeley Pier; the parking lot on Seawall Drive; and adjacent roadways, including Seawall Drive and University Avenue up to Interstate 580 (I-580).

Figure 1. Project Location



Project Overview

Currently in the Design/Environmental study phase, the Berkeley Pier Ferry project proposes a zero-emissions electric ferry service linking Berkeley to San Francisco and Larkspur, which would be operated by WETA. The proposal involves the demolition of a closed, long-required BCDC public access fishing pier and the construction a new 1,080-foot-long public pier with pedestrian access and a ferry terminal in its place, connected to a 400-foot-long breakwater. To support ferry operations, dredging would occur along an existing navigation channel, and infrastructure would be added, including charging stations and boarding facilities.

The project would also include improvements to the surrounding Berkeley Waterfront and roadways, such as repaving and restriping, construction of a raised Class IV cycle track, transit facilities, and transportation drop-off zones. Additional proposed improvements include a Bay Trail extension, parking lot renovations, new landscaping, signage, lighting, and a new public plaza with restrooms and bike parking.

Review by the Board

The proposed project has a number of components that will likely require more detailed review and discussion by the Board. This briefing is intended to introduce the overall project concept and broader Berkeley Waterfront context in order to facilitate such review and discussion at future meetings as the project develops. In preparation for these future meetings, staff requests that Board members consider the types of information, design elements, or contextual materials that would facilitate their thorough and constructive review. Staff also welcomes input on how to structure future presentations to ensure the that the desired information is shared clearly and effectively to allow for meaningful feedback.

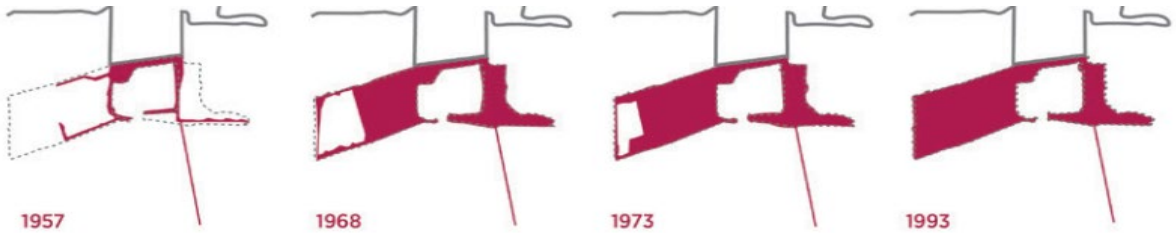
Project Site

Site History

Prior to its industrialization, the Berkeley Waterfront was a tidal marsh, and its first known inhabitants were the Huchiun-Ohlone people. The site of one the Bay Area's oldest Ohlone shellmounds, currently an asphalt parking lot at 1900 Fourth Street, is less than half a mile east of the project site. From the Gold Rush until the mid-20th century, the primary use of the Berkeley Waterfront was commercial maritime transportation. As public pressure for Bay conservation mounted in the 1950s, Berkeley Waterfront land uses shifted from primarily industrial to a mix of commercial development, recreation, and public access.

The Berkeley Marina as it exists today is located entirely on Bay fill, the placement of which began in the early 20th century with the construction of private wharves, followed by the harbor now known as the Berkeley Marina. César Chávez Park, north of the Marina, was originally constructed as a municipal landfill containing municipal garbage and soil refuse, as well as spoils from the construction of I-80. The park site was capped and opened to the public in 1991. Filling continued throughout the early 20th century until the establishment of BCDC in 1965, which approved the last major expansions of the Waterfront through 1968 for public access, recreation, and some commercial activity.

Figure 2. Fill in Berkeley Marina from 1957 to 1993



Source: 2024 Draft Berkeley Waterfront Specific Plan

Berkeley Pier In 1926, the Golden Gate Ferry Company constructed a causeway extending from the original Berkeley shoreline at Second Street out to deeper water, where automobiles could board a ferry bound for San Francisco. Following the opening of the Bay Bridge in 1937, most ferry services in the region were discontinued, and the causeway was formally transferred to the City of Berkeley. The City operated the structure as a public fishing pier until its closure in 2015 due to structural deterioration.

Existing Conditions

The proposed project would occur along a large extent of the southern Berkeley Waterfront, which the San Francisco Bay Plan designates as a Waterfront Park/Beach Priority Use Area. Adjacent to the South Sailing Basin, the Waterfront south of University Avenue is a key destination for both land- and water-based recreational opportunities in the East Bay, and encompasses popular open spaces such as Shorebird Park, the Shorebird Nature Center, and the Adventure Playground. At the South Sailing Basin—a popular destination for windsurfers, swimmers, and sailors alike—organizations like Cal Sailing and Cal Adventures provide water-based recreation services alongside public amenities such as the South Cove Launch Plaza (a public sailing dock), and a windsurfing staging area. At the end of Seawall Drive next to the former HS Lordship's restaurant, which has been vacant since 2018, is an informal board sailing launch popular with advanced users. North of University Avenue, recreation amenities include the Inner Harbor Pathway and Horseshoe Park.

The Waterfront also encompasses the Berkeley Marina, which is the largest public marina in the San Francisco Bay. It provides over 1,000 boat slips ranging in length from 20 feet to 84 feet. The Marina is also home to the Berkeley Yacht Club and numerous other boating organizations, such as the Berkeley Racing Canoe Center, Dragon Boats, and charter boats. Nearby commercial uses include the Skates on the Bay Restaurant, Hana Japan and Marina Dockside restaurants at Marina Mall, and the Berkeley Waterfront Offices.

The project site is currently accessed via University Avenue, which provides transit connections via bus through AC Transit line 51B. A Bay Trail spur runs along the southern extent of the Berkeley Waterfront and joins the broader Bay Trail network in the East Bay at Frontage Road where it intersects with University Avenue.

Figure 3: Berkeley Waterfront Existing Conditions



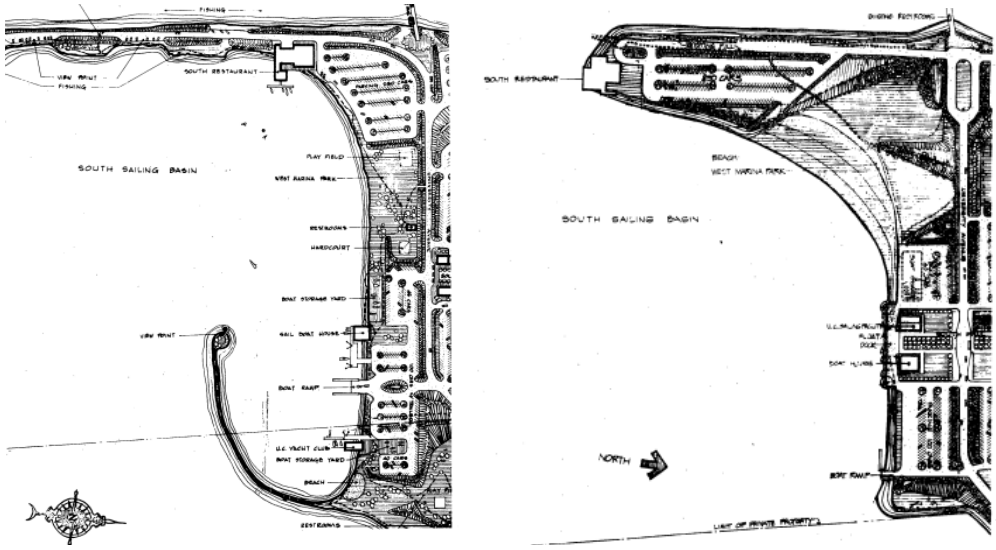
Source: BCDC, MTC

Permit History

The permitting history at the Berkeley Waterfront is extensive, ranging from minor capital improvement projects to major dredging, fill, and shoreline protection projects. The selected permits listed below are most relevant to the proposed project.

- **BCDC Permit No. 1966.028.00.** Authorized use of 40,000 cubic yards of dredged material from the South Sailing Basin to fill 4.6 cubic acres adjacent to the shoreline in 1966 "for a marina restaurant, public beach, park area, automobile parking, and a relocated and expanded University of California sailing facility." This permit has not been amended since the original authorization.

Figure 4: Fill Authorized BCDC Permit No. 1966.028.00 (Before and after 1965)



- **BCDC Permit No. 1967.002.00.** Authorized filling of approximately 4.3 acres adjacent to the Berkeley Marina for a pedestrian plaza, automobile parking area, and waterfront walkway north of University Avenue and along Seawall Drive from the Berkeley Yacht Club to the fishing pier.

- **BCDC Permit No. 1979.005.14** Authorized the mooring and use of no more than 100 live-aboard vessels, maintenance of wooden pilings and docks, repairs to utilities and marina infrastructure, and dredging activities within the Bay. Within the shoreline band, it authorized the establishment of several public access areas, landscape improvements, maintenance and expansion of public pathways, and use and maintenance of approximately 25,550 square feet of public parking lot. Required public access improvements include the construction of a public access connection between the property and the neighboring parcels to the east and west to facilitate the completion of the Bay Trail. This is the primary permit for activities within the Berkeley Marina, and has been amended 14 times since the original authorization.

- **BCDC Permit No. M1985.050.02**. Authorized activities at Shorebird Park, including the installation of ADA accessibility improvements for pedestrian circulation, site furnishings, restrooms, and access to recreation activities such as the tidepool areas and exercise courts. The permit also requires riprap maintenance and other general in-kind maintenance at the Berkeley Marina.

- **BCDC Permit No. 1982.006.03.** Authorized improvements to the Berkeley fishing pier. Required public access includes the entire length of the Berkeley Municipal Fishing Pier, which must remain open to the public.

- **BCDC Permit No. M1982.088**. Authorized riprap placement as well as replacement of an existing dock with a dock of equal size and a new 1,250-square-foot dock, both to be used for hand-carried watercraft. The entire project area referenced in this permit is intended for public access, and additional public access improvements include: a new public path, site furnishings, and a boat drop-off area.

- **BCDC Permit No. M1998.063.00.** Authorized the construction, use, and maintenance of approximately 7,130 linear feet of a 12-foot-wide section of the Berkeley Bay Trail from Virginia Street to Point Emery, and rock slope protection along West Frontage Road.

- **BCDC Permit No. M2007.008.04.** Authorized the construction of an approximately 2,440-foot-long section of a spur of the San Francisco Bay Trail and improved windsurfer and water access. Required public access improvements include a 1,400-square-foot footbridge, a 160-square-foot bus pad, landscaping improvements and site furnishings, a 500-square-foot windsurfer ramp and staging area, and a new public restroom.

- **BCDC Permit No. M2020.020.00.** Authorized improvements to Marina roadways, including Spinnaker Way, Marina Boulevard, and University Avenue. Required public access improvements include designated crosswalks connecting to established Bay Trail, trail networks, and public recreation amenities; accessible curb ramps, connector paths, pedestrian access points, and pedestrian refuge islands; a contiguous green space between the south side of the eastbound lanes and the Bay Trail; and replacement of old trash receptacles.

Land Use and Planning Context

Land Use

Open space and recreation areas dominate current land uses at the Berkeley Waterfront, accounting for approximately 76 percent of the area through waterfront parks, playgrounds, landscaped areas, public spaces, and trails. Streets and parking lots, which facilitate access to recreation amenities and the Berkeley Marina, occupy approximately 18.5 percent. Commercial recreational uses cover about 3.5 percent, with maritime uses comprising the remaining 2 percent. Note that these percentages do not include water uses, such as the Berkeley Marina Harbor and South Sailing Basin docks.

The Berkeley Waterfront is located in an Unclassified (U) zoning district per the City of Berkeley Zoning Ordinance (BMC 23.208.020). Unclassified districts are not designated for a particular use, and each new project in these districts must receive a use permit from the City through a conditional approval process.

The Berkeley Waterfront is located on State Public Tidelands to the west of Eastshore State Park, and is bounded by the western end of the current 3,000 ft Berkeley Pier. Public Tidelands are generally all subject to the Public Trust Doctrine, and the California State Lands Commission

has jurisdiction and management authority over all ungranted tidelands, submerged lands, and the beds of navigable lakes and waterways.

In addition, in 1986, the citizens of Berkeley passed the City of Berkeley Open Space Ordinance (Measure L) to ensure that all existing City-owned open space would be preserved for open space use. The Open Space Ordinance is applicable to three formally designated parks at the Marina: César Chávez Park, Shorebird Park, and Horseshoe Park.

Figure 5: Berkeley Waterfront Land Use Composition



Source: 2024 Draft Berkeley Waterfront Specific Plan

Waterfront Planning Efforts

The City is currently undertaking two large-scale planning efforts involving the Waterfront.

- **Draft Berkeley Waterfront Specific Plan.** The City of Berkeley has been developing a Waterfront Specific Plan (WSP) to provide a vision for meeting community needs at the Waterfront for the next 25-50 years, designate areas for potential commercial redevelopment and new recreation opportunities, streamline project approvals, and provide design guidelines for future projects. The process began in 2019 in response to City Council concerns about a growing fiscal crisis in the Waterfront to provide a framework for considering appropriate new uses to the Waterfront that could generate new revenue, help meet community needs, and preserve community values.The remainder of the project is currently unfunded and timing for completion is unknown.

The current draft of the WSP includes the following Key Goals for the Berkeley Pier Ferry Project:

1. Rebuild and reopen the Berkeley Pier for recreation and ferry access.
2. Establish ferry access at the Berkeley Pier.
3. Redevelopment and recreational enhancements that anticipate the future Pier Ferry Access Project.
4. Plan for future visitor demand at the Waterfront brought by the Pier Ferry Access Project

Note that the Pier Ferry project and the WSP are two separate projects, and the Pier Ferry project does not depend on adoption of the WSP to proceed.

- **Berkeley Bike Plan.** The City is currently undertaking an update of the Bike Plan. The last update of the plan was completed in 2017. Outreach for the Berkeley Bike Plan Update started in 2022 but included a hiatus due to staff shortages. The 2017 Bike Plan does not include proposed improvements to the Berkeley Waterfront, and a draft of the 2025 plan has not yet been released. The update to the Berkeley Bike Plan was originally scheduled for adoption at the Berkeley City Council in July of 2025, however is now anticipated to be presented in October, 2025.

Other Projects and Planning Efforts at the Berkeley Waterfront

A selection of ongoing and planned Waterfront and capital improvement projects and planning efforts are listed below to provide additional context for near- and long-term activities in the vicinity of the Pier Ferry project area. Note that this list includes both City and non-City projects, and implementation of the listed projects is subject to funding availability and may change in the future.

- South Cove
  - Middle Dock ADA gangway float replacement
  - East Dock pier piling repairs
  - South Cove West parking lot improvements
  - South Sailing Basin dredging (planning only)
  - Seawall replacement (planning only)
- Berkeley Marina
  - Docks D&E replacement
  - Docks O&K electrical upgrade
  - Maintenance dredging of Marina entrance and Inner Harbor
  - K-Dock restroom renovation
  - N-Lot parking lot improvements (near Skates on the Bay)
- Cesar Chavez Park
  - New Restroom on Spinnaker Way
  - Marina Boulevard Bay Trail and shoreline resiliency improvements (planning only)

  - Eastshore State Park North Basin Shoreline and Public Access Study (East Bay Regional Park District)
  - University Ave/I-80 overpass improvements (Caltrans)
- Recently Completed
  - Selective timber pile replacement
  - Street improvements at University Ave, Marina Blvd, and Spinnaker Way
  - South Cove East parking lot improvements / Bay Trail extension.

Social and Environmental Context

The Commission has developed a Community Vulnerability Mapping Tool to help inform its analysis of how socioeconomic indicators and contamination burdens contribute to a community's vulnerability to climate change. The mapping tool collects information at the level of Census blocks using 2020 data and at the level of the Census tract using CalEnviroScreen 3.0. Commission staff use the tool to help identify communities with environmental justice burdens. These communities include those disproportionally affected by environmental pollution and hazards that can lead to negative public health effects, exposure, or environmental degradation, and those with higher concentrations of people with socioeconomic characteristics indicative of a higher degree of social vulnerability.

Figure 6. Community Vulnerability Map



According to the Community Vulnerability Mapping Tool, the project is located within a Census block with a reported population of 1,698 people. The tool identifies the Census block as having Moderate social vulnerability and Highest contamination vulnerability, based on the following indicators in the 90th percentile: presence of nearby cleanup sites, groundwater threats, presence of nearby hazardous waste sites, and vicinity to impaired water bodies. There are no social vulnerability indicators in the 90th percentile, and the social vulnerability indicators in the

70th percentile include: prevalence of renters, households with no vehicle, single-parent households, and individuals over 65 living alone. Other Census blocks near the project site vary from Low to Moderate social vulnerability and Highest to Moderate contamination vulnerability.

Community Engagement

The City of Berkeley and WETA conducted public outreach from January 2021 to October 2021 as part of the Feasibility Study for the proposed project. Activities included three focus group meetings, three community workshops, two City Council working sessions, and one questionnaire.

Since then, the City of Berkeley has conducted additional outreach (January 2025 to April 2025), which to date has included meetings with the following groups and organizations:

- AC Transit
- Berkeley Black Ecumenical Ministers Alliance
- Berkeley Business District Network
- Berkeley Chamber of Commerce
- Berkeley Design Advocates
- Berkeley Democratic Club
- Berkeley Youth Commission
- Berkeley Neighborhood Council
- Berkeley Parks, Recreation, and Waterfront Commission
- Bike East Bay
- East Bay Conservation Committee
- Gilman Coordinating Committee
- Healthy Black Families
- Live Oak Community Center (Community Partner Resource Night)
- Save the Bay
- San Francisco Water Emergency Transportation Authority (WETA)
- Shuttle Operators
- Telegraph for People
- UC Berkeley Urban Studies Student Association
- Washington Elementary School (Black History Month Celebration)
- Walk/Bike Berkeley
- West Berkeley Shuttle Board
- Youth & Parks Commission Presentations